

ELECTION COMMISSION

ARTICLE 324 CONSTITUTIONAL POSITION → APPOINTMENT ACT, TENURE, REMOVAL → ELECTION ADMINISTRATION FROM SCHEDULE → RPA INTERFACE, DELIMITATION BOUNDARY → POLITICAL PARTIES, SYMBOLS AND → CAMPAIGN FINANCE, CRIMINALISATION, PAID

Read the thick cyan rail from Stage 00 to the final core synthesis. Each card uses a concept-appropriate structure; the grey E card is optional enrichment only and never repairs missing core content.

PRIMARY CORE FLOW SUBORDINATE EXTRA APPROVAL / REVIEW

Approval: FALSE • Pending user review • active generation g2 repaired in place for answer-line and visual-boundary quality • all prior artifacts unchanged

CORE BEFORE EXTRA • prior artefacts unchanged • exact same master drives poster and tiles

00

STAGE 00 ARTICLE 324 CONSTITUTIONAL POSITION AND COLLEGIAL ELECTION COMMISSION

ARTICLE 324 CONSTITUTIONAL POSITION AND COLLEGIAL ELECTION COMMISSION

ARTICLE 324 SUPERINTENDENCE, DIRECTION AND CONTROL OF ROLLS AND

STATE LEGISLATURES

CEC + SUCH NUMBER OF ELECTION COMMISSIONERS AS PRESIDENT

PRESIDENT MAY APPOINT REGIONAL COMMISSIONERS AFTER CONSULTING THE ECI.

COLLEGIALITY MULTI-MEMBER COMMISSION DECIDES BY MAJORITY UNDER THE GOVERNING

EXCLUSION LOCAL-BODY ELECTIONS

STATE ELECTION COMMISSIONS UNDER ARTICLES 243K AND 243ZA.

CONSTITUTIONAL BASIS / ARTICLE

- ARTICLE 324 superintendence, direction and control of rolls and elections to
- State legislatures

POWER / PROCEDURE

- CEC + such number of Election Commissioners as President fixes.
- President may appoint Regional Commissioners after consulting the ECI.

CHECK / LIMIT

- COLLEGIALITY multi-member Commission decides by majority under the governing statute.
- EXCLUSION local-body elections → State Election Commissions under Articles 243K and 243ZA.

FEDERAL / RIGHTS IMPACT

- CONSTITUTIONAL POSITION independent election manager + distributed field machinery bounded by Constitution, enacted law, natural justice and judicial
- ARTICLE 324 superintendence, direction and control of rolls and elections to

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Simultaneous logistics or use of State officials does not merge the two constitutional authorities.

01

STAGE 01 APPOINTMENT ACT, TENURE, REMOVAL AND INDEPENDENCE SAFEGUARDS

APPOINTMENT ACT, TENURE, REMOVAL AND INDEPENDENCE SAFEGUARDS

ANOOP BARANWAL (2023) INTERIM PM + OPPOSITION LEADER +

2023 APPOINTMENT ACT

SEARCH COMMITTEE LED BY LAW MINISTER

PANEL OF FIVE

SELECTION COMMITTEE

PM + UNION CABINET MINISTER + OPPOSITION LEADER

PRESIDENT APPOINTS.

Anoop Baranwal (2023) interim PM + Opposition leader + CJI committee only until Parliament made

2023 APPOINTMENT ACT

Search Committee led by Law Minister → panel of five

Selection Committee: PM + Union Cabinet Minister + Opposition leader

CONSTITUTIONAL BASIS / ARTICLE

- Anoop Baranwal (2023) interim PM + Opposition leader + CJI committee only until Parliament made a law.
- 2023 APPOINTMENT ACT
- Search Committee led by Law Minister → panel of five

POWER / PROCEDURE

- Selection Committee: PM + Union Cabinet Minister + Opposition leader
- President appoints.
- TERM six years or age 65, whichever earlier; no reappointment under the Act.

CHECK / LIMIT

- CEC → like Supreme Court judge.
- EC/Regional Commissioner → President only on CEC recommendation.
- CURRENT LEGAL CONTROL: 24 AUGUST 2026

FEDERAL / RIGHTS IMPACT

- Act operates; challenge pending; no claim of final validation or invalidation.
- INDEPENDENCE TEST appointment + removal + finance + secretariat + staff + transparent reasons.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Independence also depends on appointment legitimacy, control over staff, a stable secretariat, adequate finance, transparent reasons and even-handed enforcement.

02

STAGE 02 ELECTION ADMINISTRATION FROM SCHEDULE AND ROLLS TO RE POLL

ELECTION ADMINISTRATION FROM SCHEDULE AND ROLLS TO RE POLL

ADMINISTRATIVE CHAIN ROLL REVISION

SCHEDULE ANNOUNCEMENT

STATUTORY NOTIFICATION

ELECTION-PETITION ROUTE.

ROLLS CITIZENSHIP + QUALIFYING AGE + ORDINARY RESIDENCE +

FIELD CONTROL

RETURNING OFFICERS

ADMINISTRATIVE CHAIN roll revision → schedule announcement → statutory notification

nomination → scrutiny → withdrawal → campaign

poll → count → result → election-petition route.

ROLLS citizenship + qualifying age + ordinary residence + inclusion/deletion due process.

CONSTITUTIONAL BASIS / ARTICLE

- ADMINISTRATIVE CHAIN roll revision → schedule announcement → statutory notification
- nomination → scrutiny → withdrawal → campaign
- poll → count → result → election-petition route.

POWER / PROCEDURE

- ROLLS citizenship + qualifying age + ordinary residence + inclusion/deletion due process.
- FIELD CONTROL
- Returning Officers

CHECK / LIMIT

- security coordination
- expenditure teams.
- URGENT INTEGRITY POWER adjournment, repoll or countermand only through the applicable legal basis and facts.

FEDERAL / RIGHTS IMPACT

- DISQUALIFICATION ADVICE
- President under Article 103 and Governor under Article 192 obtain ECI opinion.
- Tenth Schedule disqualification belongs to Speaker/Chairman, not ECI.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Article 324(6) requires the President or Governor, when requested by the ECI, to make staff available for election functions.

03

STAGE 03 RPA INTERFACE DELIMITATION BOUNDARY VOTER REGISTRATION AND NOTA

02

STAGE 02

ELECTION ADMINISTRATION FROM SCHEDULE AND ROLLS TO REPOLL

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ADMINISTRATIVE CHAIN ROLL REVISION

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03

STAGE 03

RPA INTERFACE, DELIMITATION BOUNDARY, VOTER REGISTRATION AND NOTA

RPA INTERFACE, DELIMITATION BOUNDARY, VOTER REGISTRATION AND NOTA

RPA 1950 SEAT ALLOCATION/DELIMITATION FRAMEWORK + ELECTORAL ROLLS +

RPA 1951 CONDUCT, CANDIDATES, EXPENSES, CORRUPT PRACTICES, DISQUALIFICATIONS AND

DELIMITATION COMMISSION IS THE STATUTORY AUTHORITY WHEN CONSTITUTED

CEC/ECI PARTICIPATES AS LAW PROVIDES BUT IS NOT THE

PEOPLE'S UNION FOR CIVIL LIBERTIES (2013) SECRET NOTA PROTECTS

NOTA LIMIT

NOTA PLURALITY DOES NOT AUTOMATICALLY CANCEL THE ELECTION OR

RPA 1950 seat allocation/delimitation framework + electoral rolls + eligibility architecture.

RPA 1951 conduct, candidates, expenses, corrupt practices, disqualifications and petitions.

→

Delimitation Commission is the statutory authority when constituted

→

CEC/ECI participates as law provides but is not the ordinary sole delimiting body.

CONSTITUTIONAL BASIS / ARTICLE

- RPA 1950 seat allocation/delimitation framework + electoral rolls + eligibility architecture.
- RPA 1951 conduct, candidates, expenses, corrupt practices, disqualifications and petitions.

POWER / PROCEDURE

- Delimitation Commission is the statutory authority when constituted
- CEC/ECI participates as law provides but is not the ordinary sole delimiting body.

CHECK / LIMIT

- People's Union for Civil Liberties (2013) secret NOTA protects voter expression and secrecy.
- NOTA LIMIT

FEDERAL / RIGHTS IMPACT

- NOTA plurality does not automatically cancel the election or force a repoll.
- ARTICLE 329 electoral process receives anti-interruption protection; post-result petition remains available.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Statutory Delimitation Commissions redraw constituencies with Election Commission participation, while their final orders acquire legal force and are not ordinary ECI decisions.

04

STAGE 04

POLITICAL PARTIES, SYMBOLS AND MODEL CODE ENFORCEMENT

POLITICAL PARTIES, SYMBOLS AND MODEL CODE ENFORCEMENT

PARTY REGISTRATION

RPA 1951 SECTION 29A

SYMBOLS ORDER, 1968

NATIONAL/STATE RECOGNITION, RESERVED/FREE SYMBOLS AND QUASI-JUDICIAL SYMBOL DISPUTES.

MODEL CODE OF CONDUCT CONSENSUS-BASED NON-STATUTORY CODE

OPERATES FROM ELECTION-SCHEDULE ANNOUNCEMENT UNTIL COMPLETION

RAPID PREVENTIVE CORRECTION AND LEVEL-PLAYING-FIELD CONTROL.

PARTY REGISTRATION

→

RPA 1951 section 29A — registration.

→

RECOGNITION / SYMBOL

→

Symbols Order, 1968 — national/State recognition, reserved/free symbols and quasi-judicial symbol disputes.

→

MODEL CODE OF CONDUCT consensus-based non-statutory code — operates from election-schedule announcement until completion —

CONSTITUTIONAL BASIS / ARTICLE

- PARTY REGISTRATION
- RPA 1951 section 29A → registration.
- RECOGNITION / SYMBOL

POWER / PROCEDURE

- Symbols Order, 1968 → national/State recognition, reserved/free symbols and quasi-judicial symbol disputes.
- MODEL CODE OF CONDUCT consensus-based non-statutory code → operates from election-schedule announcement until completion → rapid preventive correction
- and level-playing-field control.

CHECK / LIMIT

- LEGAL OVERLAP bribery, communal appeals, expenditure and other conduct may independently violate law.
- LIMITS registration != recognition
- symbol jurisdiction != every internal party dispute

FEDERAL / RIGHTS IMPACT

- MCC is not by itself a complete penal code.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Registration under section 29A does not itself confer party recognition or a reserved symbol, which depend on separate performance-based rules under the Symbols Order.

05

STAGE 05

CAMPAIGN FINANCE, CRIMINALISATION, PAID NEWS AND SOCIAL-MEDIA LIMITS

CAMPAIGN FINANCE, CRIMINALISATION, PAID NEWS AND SOCIAL-MEDIA LIMITS

CAMPAIGN FINANCE CANDIDATE ACCOUNT + STATUTORY CEILING + OBSERVERS/TEAMS

!= ONE IDENTICAL CEILING FOR TOTAL POLITICAL-PARTY CAMPAIGN SPENDING.

CRIMINALISATION CANDIDATE AFFIDAVIT DISCLOSURE + RPA DISQUALIFICATION + COURT

ECI CANNOT INVENT NEW CONVICTION OR DISQUALIFICATION GROUNDS.

PAID NEWS MEDIA MONITORING

EXPENSE ATTRIBUTION OR LEGAL ROUTE WHERE SUPPORTED.

SOCIAL MEDIA

CAMPAIGN FINANCE candidate account + statutory ceiling + observers/teams

!= one identical ceiling for total political-party campaign spending.

→

CRIMINALISATION candidate affidavit disclosure + RPA disqualification + court process.

→

ECI cannot invent new conviction or disqualification grounds.

ELECTION COMMISSION • TILE 2/4 • same master rows 2287-5521 of 10095 • continues below

- PARTY REGISTRATION
- RPA 1951 section 29A → registration.
- RECOGNITION / SYMBOL

- Symbols Order, 1968 → national/State recognition, reserved/free symbols and quasi-judicial symbol disputes.
- MODEL CODE OF CONDUCT consensus-based non-statutory code → operates from election-schedule announcement until completion → rapid preventive correction
- and level-playing-field control.

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STAGE 05

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CONSTITUTIONAL BASIS / ARTICLE

- CAMPAIGN FINANCE candidate account + statutory ceiling + observers/teams
- != one identical ceiling for total political-party campaign spending.
- CRIMINALISATION candidate affidavit disclosure + RPA disqualification + court process.

POWER / PROCEDURE

- ECI cannot invent new conviction or disqualification grounds.
- PAID NEWS media monitoring → evidence → expense attribution or legal route where supported.
- SOCIAL MEDIA / DEEPFAKES ad certification + MCC/advisories + applicable election/criminal/technology law.

CHECK / LIMIT

- ECI is not a general platform regulator or universal censor.
- Union of India v. Association for Democratic Reforms (2002)
- voter right to candidate information.

FEDERAL / RIGHTS IMPACT

- REFORM TEST clear law + reasons + equal enforcement + rapid remedy + audit trail.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The proposal that the candidate/party bear the bye-election cost has been discussed as reform, but it is not the present rule stated in statement 3.

06

STAGE 06

EVM-VVPAT ARCHITECTURE AND CURRENT JUDICIAL CONTROLS

EVM-VVPAT ARCHITECTURE AND CURRENT JUDICIAL CONTROLS

POLLING CHAIN

BALLOT UNIT

CONTROL UNIT

VVPAT SLIP DISPLAY/DROP

SEALED RECORDS

COUNTING PROTOCOL.

VVPAT PURPOSE VOTER-VERIFIABLE PAPER AUDIT TRAIL, NOT A TAKE-HOME

Ballot Unit → Control Unit → VVPAT slip display/drop → sealed records → counting protocol.

VVPAT PURPOSE voter-verifiable paper audit trail, not a take-home ballot.

Association for Democratic Reforms v. Election Commission of India (2024) rejected paper-ballot return and universal

CONSTITUTIONAL BASIS / ARTICLE

- POLLING CHAIN
- Ballot Unit → Control Unit → VVPAT slip display/drop → sealed records → counting protocol.
- VVPAT PURPOSE voter-verifiable paper audit trail, not a take-home ballot.

POWER / PROCEDURE

- Association for Democratic Reforms v. Election Commission of India (2024) rejected paper-ballot return and universal 100% VVPAT counting
- added limited post-result technical safeguards.
- 2025 FOLLOW-UP candidate-requested diagnostic/check process operates within the Court's stated protocol.

CHECK / LIMIT

- ANSWER DISCIPLINE device security + roll accuracy + staff neutrality + campaign fairness
- transparent audit + reasoned judicial/administrative safeguards.
- LIMIT unsupported fraud claims and unsupported infallibility claims are both exam-unsafe.

FEDERAL / RIGHTS IMPACT

- Association for Democratic Reforms v. Election Commission of India (2024) rejected paper-ballot return and universal 100% VVPAT counting

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Supreme Court safeguards permit request-based post-result checks and preservation of specified EVM components, but do not constitute a judicial finding that manipulation occurred.

07

STAGE 07

ARTICLE 324 CASE-LAW CODE: POWER, LAW, COLLEGIALITY AND RIGHTS

ARTICLE 324 CASE-LAW CODE

POWER, LAW, COLLEGIALITY AND RIGHTS

MOHINDER SINGH GILL (1977)

ARTICLE 324 IS A RESERVOIR WHERE LAW IS SILENT

A.C. JOSE (1984)

ECI FILLS GAPS BUT CANNOT ACT CONTRARY TO A

T.N. SESHAN (1995) MULTI-MEMBER COMMISSION AND EQUAL DECISION-MAKING STATUS

UNION OF INDIA V. ASSOCIATION FOR DEMOCRATIC REFORMS (2002)

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
Mohinder Singh Gill (1977)	ECI fills gaps but cannot act contrary to a field occupied by legislation/rules.	People's Union for Civil Liberties (2013) secret NOTA protects expression; it is not a binding reject option.	ECI fills gaps but cannot act contrary to a field occupied by legislation/rules.
Article 324 is a reservoir where law is silent; it cannot override enacted law.	T.N. Seshan (1995) multi-member Commission and equal decision-making status are constitutionally valid.	Anoop Baranwal (2023) → temporary appointment rule until legislation.	
A.C. Jose (1984)	Union of India v. Association for Democratic Reforms (2002) candidate disclosure serves the voter's Article 19(1)(a) right.	The VVPAT ruling is separately controlled by its full 2024 case label in Stage 06.	
CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Supreme Court safeguards permit request-based post-result checks and preservation of specified EVM components, but do not constitute a judicial finding that manipulation occurred.

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STAGE 07 ARTICLE 324 CASE-LAW CODE: POWER, LAW, COLLEGIALITY AND RIGHTS

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POWER, LAW, COLLEGIALITY AND RIGHTS

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CONSTITUTIONAL BASIS / ARTICLE

- Mohinder Singh Gill (1977)
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POWER / PROCEDURE

- ECI fills gaps but cannot act contrary to a field occupied by legislation/rules.
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- The VVPAT ruling is separately controlled by its full 2024 case label in Stage 06.

FEDERAL / RIGHTS IMPACT

- ECI fills gaps but cannot act contrary to a field occupied by legislation/rules.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Mohinder Singh Gill (1977) accepted broad ECI authority in a grave poll-disruption setting while insisting that constitutional power operates for free and fair elections and remains legally controlled.

08

STAGE 08 ECI-SEC BOUNDARY, REFORM PRIORITIES, TRAPS AND FINAL ANSWER SPINE

ECI-SEC BOUNDARY, REFORM PRIORITIES, TRAPS AND FINAL ANSWER SPINE

ECI STATE ELECTION COMMISSION

PARLIAMENT/STATE LEGISLATURE/P/VP PANCHAYAT AND MUNICIPAL ELECTIONS

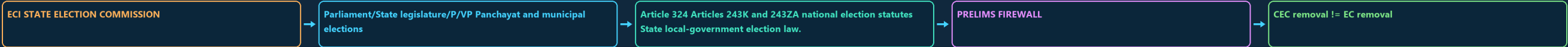
ARTICLE 324 ARTICLES 243K AND 243ZA NATIONAL ELECTION STATUTES

PRELIMS FIREWALL

CEC REMOVAL

EC REMOVAL

ECI ADVICE



CONSTITUTIONAL BASIS / ARTICLE

- ECI STATE ELECTION COMMISSION
- Parliament/State legislature/P/VP Panchayat and municipal elections
- Article 324 Articles 243K and 243ZA national election statutes State local-government election law.
- PRELIMS FIREWALL

POWER / PROCEDURE

- CEC removal != EC removal
- ECI advice != Tenth Schedule decision
- ECI assists delimitation != sole delimiting authority party registration != recognition
- NOTA != automatic repoll.

CHECK / LIMIT

- REFORM credible plural appointment + stable secretariat/finance
- equal collegial security with accountability → transparent complaint orders
- cleaner rolls → faster disputes → audited technology and campaign enforcement.
- MAINS SPINE

FEDERAL / RIGHTS IMPACT

- Article 324 purpose → power/function → legal boundary → case-year
- independence deficit → accountable reform → trust-ecosystem verdict.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Ponnuswami protects the election from midstream interruption; later doctrine permits judicial intervention only where it facilitates rather than retards the electoral process.

E

EXTRA SUBORDINATE ENRICHMENT — ONLY AFTER THE COMPLETE CORE

OPTIONAL ADVANCED ENRICHMENT

PART A — ELECTION COMMISSION OF INDIA (ART 324)

PART B — ELECTIONS (ART 325–329)

PART C — ELECTORAL REFORMS (HIGHLIGHTS)

NOT CONCERNED WITH PANCHAYAT/MUNICIPALITY POLLS

THAT'S THE STATE ELECTION COMMISSION .

CEC REMOVED ONLY LIKE A SUPREME COURT JUDGE (SPECIAL-MAJORITY

CEC'S SERVICE CONDITIONS CAN'T BE VARIED TO HIS DISADVANTAGE

OPTIONAL DOCTRINE / CASE

- PART A — ELECTION COMMISSION OF INDIA (Art 324)
- PART B — ELECTIONS (Art 325–329)
- PART C — ELECTORAL REFORMS (highlights)
- NOT concerned with panchayat/municipality polls → that's the State Election Commission .

ADVANCED LIMIT

- CEC removed only like a Supreme Court judge (special-majority resolution of both Houses on proved
- CEC's service conditions can't be varied to his disadvantage after appointment.
- Other ECs / Regional Commissioners removed only on the CEC's recommendation .
- CAUTION: Flaws Laxmikant flags: Constitution prescribes no qualifications , no fixed term (set by law/rules),

COMPARATIVE NUANCE

- Anoop Baranwal (2023) v. Union of India (March 2023): SC ruled the CEC/ECs be appointed by a committee of
- CEC & Other ECs (Appointment, Conditions of Service and Term of Office) Act, 2023 replaced the CJI with a
- CEC Gyanesh Kumar was appointed in Feb 2025 under the new Act. Status
- Assisted by Deputy ECs (civil service); at state level the Chief Electoral Officer ; district = DEO/

OPTIONAL STATUS — This optional depth is unnecessary for a competent core answer; use it only for added nuance after the complete core has been written.